

Before the Board of Psychology Examiners

In the matter of the license to	
Practice as a Psychologist of:	) Notice of Hearing
Stanley Patterson, Ph.D.	) and
license # 593, health service	) Statement of Charges
provider #199	

To: Stanley D. Patterson, Ph.D.
94 25th Ave North
Clinton, IA 52732
CERTIFIED MAIL - RETURN RECEIPT REQUESTED

Pursuant to Iowa Code § 17A.12 and 645 Iowa Administrative Code 240.206, and upon a probable cause determination by the Iowa Board of Psychology Examiners (the Board), you are notified that a Statement of Charges has been filed and that a discipline hearing regarding those charges has been scheduled at 9:00 a.m., June 6, 1994 in the 3rd floor conference room, side 2, Lucas State Office Building, 321 East 12th, Des Moines Iowa. At that time you may appear and defend. If you fail to appear and defend Iowa Code 17A.12(3) provides that the hearing may proceed and a decision rendered. You have the right to be represented by legal counsel at your own expense, present evidence on your behalf, and to examiner and cross-examine witnesses. The authority for the hearing is Iowa Code §272C.3 and 272C.6 and Board rules 240.201 through 240.212.

The hearing will concern whether or not disciplinary action should be taken concerning your license to practice as a psychologist based upon the following allegations:

1. On or about September 21, 1993 the Wisconsin Psychology Examining Board issued a Final Decision and Order which (a) ordered you to surrender your right to renew your license to practice psychology in the state of Wisconsin and (b) precludes you from ever re-applying for a license to practice psychology in Wisconsin.
2. You failed to report the above Final Decision and Order to the Iowa Board of Psychology Examiners.

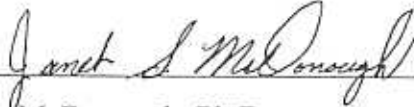
The above allegations are in violation of rules 645 Iowa Administrative Code 240.212(5) "Revocation, suspension, or other disciplinary action taken by a licensing

authority of another state, territory or country; or failure by the licensee to report in writing to the Iowa board of psychology examiners revocation, suspension, or other disciplinary action taken by a licensing authority of another state, territory, or country; or both."

The hearing will be presided over by the Board which will be assisted by an administrative law judge from the Iowa Department of Inspections and Appeals.

The office of the Attorney General is responsible for representation of the public interest in these proceedings. Copies of all filings with the Board should be served on counsel at the following address: Maureen McGuire, Assistant Attorney General, Hoover State Office Building, Des Moines, IA 50319, telephone number 515/281-8760.

Dated this 2nd day of May, 1994



Janet McDonough, Ph.D.
Chairperson
Iowa Board of Psychology Examiners

copy:

Maureen McGuire

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The hearing will concern whether or not disciplinary action should be taken concerning your license to practice as a psychologist based upon the following allegations:

1. On or about September 21, 1993 the Wisconsin Psychology Examining Board issued a Final Decision and Order which (a) ordered you to surrender your right to renew your license to practice psychology in the state of Wisconsin and (b) precludes you from ever re-applying for a license to practice psychology in Wisconsin.

2. You failed to report the above Final Decision and Order to the Iowa Board of Psychology Examiners.

The above allegations are in violation of rules 645 Iowa Administrative Code 240.212(5) "Revocation, suspension, or other disciplinary action taken by a licensing

BEFORE THE BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF THE	)	DIA NO. 94DPHPS-1
LICENSE TO PRACTICE	)	
AS A PSYCHOLOGIST OF:	)	
	)	
STANLEY D. PATTERSON, Ph.D.	)	FINDINGS OF FACT,
License #593, health service	)	CONCLUSIONS OF LAW,
provider #199	)	DECISION AND ORDER

On May 2, 1994, Janet McDonough, Ph.D., Chairperson of the Iowa Board of Psychology Examiners (Board), filed a Notice of Hearing and Statement of Charges against Stanley D. Patterson, Ph.D. (Respondent).

The hearing was held on June 6, 1994, at 9:10 a.m., in the third floor conference room, side 2, Lucas State Office Building, Des Moines, Iowa. The following members of the Board were present for the hearing: Janet McDonough, Ph.D., Chairperson; Kathryn Gerken, Ph.D.; Robert Jones, Ph.D.; Scott Shafer, Ph.D.; and Madonna McGuire, Public Member. Maureen McGuire, Assistant Attorney General, appeared for the State. The Respondent did not appear, nor was he represented by counsel. Margaret LaMarche, Administrative Law Judge from the Iowa Department of Inspections and Appeals, presided. The hearing was tape recorded and was open to the public, pursuant to Iowa Code section 272C.6(1)(1993). After hearing the testimony and examining the exhibits, the Board convened in closed executive session, pursuant to Iowa Code section 21.5(1)(f)(1993) to deliberate. The Board directed the Administrative Law Judge to prepare the Board's Decision in conformance with their deliberations.

THE RECORD

The record includes the Notice of Hearing and Statement of Charges, the testimony of the witness, and the following exhibits:

- State's Exhibit 1: Return Receipt Cards for service of notice.
- State's Exhibit 2: Certified Copy of Final Decision and Order and Stipulation, 91PSY018, 91PSY 024, Wisconsin Psychology Examining Board
- State's Exhibit 3: Letter dated May 28, 1994 (Respondent to Board)

FINDINGS OF FACT

1. On September 21, 1993, the Wisconsin Psychology Examining Board issued a Final Decision and Order, pursuant to a Stipulation signed by the Respondent, which ordered the Respondent to surrender his right to renew his license to practice psychology in the state of Wisconsin and precluded him from ever reapplying for a license to practice psychology in Wisconsin. (Exhibit 2)

2. The Order of the Wisconsin Board was based on allegations that the Respondent had engaged in sexual intimacies with two clients, while they were in therapeutic relationships with him. (Exhibit 2)
3. The Respondent, who is also licensed to practice psychology in Iowa, did not report the disciplinary action taken by the Wisconsin Board to the Iowa Board. (testimony of Kathy Williams)
4. The Notice of Hearing and Statement of Charges was served on the Respondent by certified mail, return receipt requested, at two separate addresses. The Respondent signed the return receipt cards on May 16, 1994, and May 21, 1994. (testimony of Kathy Williams; Exhibit 1)
5. The Respondent submitted a letter to the Board in which he stated that he has not practiced psychology since mid-October 1993, when he was terminated from his position at the Mental Health Center in Clinton, Iowa. In his letter, he denied the allegations of the two former clients in Wisconsin, and states that he chose to give up his Wisconsin license because he did not have the emotional or financial resources to do otherwise. (Exhibit 3)

CONCLUSIONS OF LAW

1. 645 IAC 240.206 provides that a notice of hearing shall be transmitted to the Respondent by certified mail, return receipt requested, at least ten days before the date of the hearing.

Iowa Code section 17A.12(3) (1993) provides that if a party fails to appear in a contested case proceeding after proper service of notice, the presiding officer may, if no adjournment is granted, proceed with the hearing and make a decision in the absence of the party.

The Respondent was properly served with notice of hearing but failed to appear. He is bound by this decision of the Board to the same extent as if he had appeared.

2. 645 IAC 240.212(5) provides in relevant part:

240.212 Suspension, revocation, or probation. The board may revoke or suspend a license, or place a license on probation for any of the following reasons:

• • •

240.212(5) Revocation, suspension, or other disciplinary action taken by a licensing authority of another state, territory, or country; or failure by the licensee to report in writing to the Iowa board of psychology examiners revocation, suspension, or other disciplinary action taken by a licensing authority of another state, territory, or country, or both.